

		mistake. Finally, the usual policy favoring resolution on the merits is not in play here. <i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 696 (“The policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.”)(internal quote marks omitted). Plaintiff did get a trial and ultimate resolution on the merits. The dismissal was the result of that trial and resolution. Based on all of the above, the motion to set aside the dismissal entered in this action is denied. Clerk is ordered to give notice.
105	2025-01526242 Luna vs. Eckart	Motion for Leave to File Cross Complaint The Court grants Defendant Mike Allen Eckart’s unopposed motion to file the proposed cross complaint against Plaintiff Levin Luna. Here, the proposed cross-complaint is compulsory. Therefore, the motion must be granted unless there is bad faith or prejudice. The Court finds neither. Thus, the motion is granted. Defendant shall file and serve his cross-complaint within 15 days. Defendant is ordered to serve notice.
106	2025-01525012 Blalock vs. Swinerton Incorporated	Demurrer to Amended Complaint Defendant Swinerton, Inc.’s demurrer to Plaintiff Wendy Blalock’s First Amended Complaint (“FAC”) is overruled. Defendant’s request for judicial notice is granted. Plaintiff is ordered to give notice.
107	2024-01407287 Mirrafati vs. California Receivership Group, Inc.	Demurrer to Amended Complaint Continued to September 23, 2026 at 2:00 p.m. in Department C27.
110	2026-01554043 Noh vs. Galbi Station, Inc.	1. Demurrer to Complaint 2. Case Management Conference Defendants Galbi Station, Inc. and Kyungsuk Park’s (“Defendants”) Demurrer to Plaintiff Kyunghee Noh’s (“Plaintiff”) Complaint is sustained with 30 days’ leave to amend. <u>1st COA for Breach of Contract & 2nd COA for Breach of the Implied Covenant</u> “A cause of action for breach of contract requires [1] pleading of a contract, [2] plaintiff’s